

84. Unclaimed consignment.- (1) if any person fails to take delivery of-

- (a) any consignment ; or
- (b) the consignment released from detention made under sub-section (1) of Sec. 83 ; or
- (c) any remaining part of the consignment under sub-section (2) of Sec. 83.

Such consignment shall be treated as unclaimed.

(2) The railway administration may,-

(a) in the case of an unclaimed consignment which is perishable in nature, sell such consignment in the manner provided in Cl. (a) of sub-section (2) of Sec. 83 or

(b) in the case of an unclaimed consignment which is not perishable in nature, cause a notice to be served upon the consignee if his name and address are known, and upon the consignor if the name and address of the consignee are not known, requiring him to remove the goods within a period of seven days from the receipt thereof and if such notice cannot be served or there is a failure to comply with the requisition in the notice, sell such consignment in the manner provided in Cl. (b) of sub-section (2) of Sec. 83.

(3) The railway administration shall out of the sale proceeds received under sub-section (2) retain a sum equal to the freight and other charges including expenses for the sale due to it and the surplus, if any, of such sale proceeds shall be rendered to the person entitled thereto.

Comment

Section 84 provides for treating certain consignments as unclaimed and the manner of disposal of such consignments and rendering the surplus of sale proceeds to the person entitled thereto.

85. Disposal of perishable consignments in certain circumstances.- (1) Where by reason of any flood, land-slip, breach of any lines of rails, collision between trains, derailment of , or other accident to a train or any other cause, traffic on any route is interrupted and there is no likelihood of early resumption of such traffic, nor is there any other reasonable route whereby traffic of perishable consignment may be diverted to prevent, loss or deterioration of, or damage to such consignment, the railway administration may sell them in the manner provided in Cl. (a) of sub-section (2) of Sec.

(2) The railway administration shall, out of the sale proceeds received under sub-section (1) retain a sum equal to the freight and other charges including expenses for the sale due to it and the surplus, if any, of such sale proceeds, shall be rendered to the person entitled thereto.

Comment

Section 85 provides for disposal of perishable consignment in the circumstances mentioned therein.

86. Sales under Secs. 83 to 85 not to affect the right to suit.- Notwithstanding anything contained in this chapter the right of sale under Secs. 83 to 85 shall be without prejudice to the right of the railway administration to recover by suit, any freight, charge, amount or other expenses due to it.

Comment

Section 86 lays down that right of sale under Secs. 83 to 85 shall not be a bar to the recovery of freight or other charges, etc. by railway administration by suit.

87. Power to make rules in respect of matters in this Chapter.- (1) The Central Government may, by notification, make rules to carry out the purposes of this Chapter.

(2) in particular, and without prejudice to the generally of the foregoing power, such rules may provide for all or any of the following matters, namely:

(a) goods in respect of which no forwarding note shall be executed under proviso sub-section (1) of Sec. 64 ;

(b) dangerous and offensive goods for the purposes of sub-section (1) of Sec. 67;

(c) infectious or contagious diseases for the purposes of Sec. 68 ;

(d) rates of penalty charges under Sec. 73 ;

(e) the manner in which the consignment may be delivered without a railway receipt under Sec. 76;

(f) the manner in which the consignment or the sale proceeds to the person entitled thereto under Sec. 77 ;